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Draft law for public discussion

Organic law of the Republic of Belarus On the commissioner for human rights

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Draft law[1] as of April 16, 2025

Organic law of the Republic of Belarus On the commissioner for human rights

This Organic Law defines the status of the Commissioner for Human Rights (hereinafter referred to as “the Commissioner”), the procedure for his/her appointment and dismissal from office, his/her scope of competence, guarantees and principles of his/her activity.

CHAPTER 1. GENERAL PROVISIONS

Article 1. Legal basis of the activities of the Commissioner for Human Rights

1. The Commissioner’s activities are guided by the Constitution of the Republic of Belarus, this Law, legislation of the Republic of Belarus, and international treaties entered into by the Republic of Belarus.
2. The Commissioner’s activities are based on the principles of legality, impartiality, transparency, respect for human and civil rights and freedoms, as well as the “do no harm” principle, which implies the exclusion of the risk of causing harm to complainants, victims of violations and other persons interacting with the Commissioner.

Article 2. Legal status of the Commissioner for Human Rights

1. The Commissioner is an independent official acting to promote and protect human rights and freedoms.
2. The Commissioner’s activities complement the existing means of protection of human and civil rights and freedoms without abolishing them. His/her activities shall not entail the revision of the scope of competence of state bodies responsible for the protection and restoration of violated rights and freedoms.

[1] Draft organic law “On the Commissioner for Human Rights” was developed in accordance with the draft Constitution of the Republic of Belarus elaborated by the Public constitutional commission https://kanstytucyja.online/index.php/text/ru

CHAPTER 2. THE PROCEDURE FOR ELECTION, TERMINATION OF POWERS, AND DISMISSAL FROM OFFICE

Article 3. Requirements for candidates for the office of Human Rights Commissioner

A citizen of the Republic of Belarus shall be eligible for election as the Commissioner for Human Rights if he/she:

obtained a higher education;

has an established reputation as a human rights defender with high moral standards;

has at least seven years of experience in the field of protection of human rights and freedoms, including scientific, educational, judicial, prosecutorial, journalistic, diplomatic, international, lawyer, law enforcement or other activities aimed at protecting and promoting human rights.

Article 4. Election of the Commissioner for Human Rights

1. The Commissioner shall be elected by the Soim for a term of seven years subsequent to the results of open competition without the right to re-election, and shall continue in office until his/her successor is elected and assumes office.

2. The competition committee shall be formed by the permanent commission of the Soim, which is mandated to deal with human rights issues. Civil society actors and members of academic community with expertise in human rights must be included on the competition committee in addition to deputies of the Soim.

3. The procedure for organizing and holding a competition, as well as qualification requirements for members of the competition committee shall be determined by the Regulations of the competition to fill the office of Human Rights Commissioner as approved by the resolution of the Soim. These Regulations shall stipulate a procedure that ensures transparency, openness and inclusiveness of the competition process.

4. Stages of competition to fill the position of the Commissioner for Human Rights:

4.1. publication of announcement of the competition on the official websites of the Soim and the Office of the Commissioner for Human Rights (hereinafter – the Office), as well as using other means of information, no later than three months before the expiration of the term of office of the incumbent Commissioner or within one month from the date of creation of vacancy in the position of the Commissioner;

4.2. receipt of candidate applications for participation in the competition within 45 days from the date of publication of announcement;

4.3. examination of submitted applications by the competition committee and selection of no more than three candidates who meet qualification requirements for the position of Human Rights Commissioner of the Republic of Belarus. The ranked list of selected candidates shall be submitted for consideration by the Soim within 30 days after the expiry of application period.

5. The decision to appoint the Commissioner shall be adopted by the vote of a majority of the constitutional composition of the Soim by means of holding a secret ballot, and shall be formalized by a resolution of the Soim.

6. If no candidate receives the required number of votes to be appointed as the Commissioner, the competition committee shall re-select and nominate new candidates for the position of the Commissioner within one month.

7. Maximum transparency and accessibility of information must be ensured at all stages of the competitive selection, nomination and election of the Commissioner.

Article 5. Swearing in of the Commissioner for Human Rights

1. The Commissioner shall assume office after being sworn in.

2. The oath of office of the Commissioner reads as follows: “Assuming the office of the Commissioner for Human Rights, I, (name and surname), solemnly swear to protect human and civil rights and freedoms in accordance with the Constitution and the laws of the Republic of Belarus, international norms and standards, as well as the principles of justice and humanism. I commit myself to perform assigned duties in good faith, to act independently and impartially in the interests of humanity”.

3. The oath of office shall be taken in a solemn ceremony at the plenary session of the Soim.

4. The oath of office act signed by the Commissioner shall be kept in the Secretariat of the Soim.

5. The Commissioner shall enter upon his/her duties from the moment of taking the oath.

6. In the event of refusal to take the oath, the person elected as the Commissioner shall be deemed to have given up his office, and the competition committee shall re-select and nominate new candidates for the position of the Commissioner within one month.

Article 6. Activities incompatible with the position of the Commissioner

1. The Commissioner may not:

1.1. engage in any gainful activity, except for scientific, teaching or creative activities on the condition that they do not hinder the execution of Commissioner’s official duties and have no bearing on his/her independence and objectivity;

1.2. hold a public or elected office other than the office of the Commissioner for Human Rights;

1.3. be a member of any political party or otherwise participate in political activities, including but not limited to campaigning, participating in election campaigns or publicly supporting a candidate for public office;

1.4. be a member of management bodies, supervisory or trustee boards of state and non-state organizations, with the exception of advisory or expert bodies that conduct

activities directly related to the protection of human rights, provided there is no conflict of interest or casting vote right.

2. The Commissioner for Human Rights is obliged to cease activities incompatible with his/her office within 30 days of the date of appointment to the position of the Commissioner. In the event of failure to fulfill this requirement, the person shall be deemed to have given up the office of the Commissioner.

3. The Commissioner shall be obliged to comply with the requirements of the laws of the Republic of Belarus on prevention and settlement of conflicts of interest during the term of his office. If the Commissioner finds himself/herself in a conflict-of-interest situation, he/she shall be obliged to take immediate measures to resolve it in accordance with the legislation.

4. The Commissioner shall submit the assets and income declaration on an annual basis in accordance with the procedure and within the time limits prescribed by the laws of the Republic of Belarus.

Article 7. Discontinuation of activities, dismissal from office

1. The activities of the Commissioner for Human Rights shall be terminated in the event of:

1.1. expiration of the term of office established by the Constitution and this Law;

1.2. death of the Commissioner.

2. The Commissioner for Human Rights may be dismissed from office before expiry in the following cases:

2.1. submission of a letter of resignation;

2.2. entry into legal force of a court verdict of guilty against the Commissioner;

2.3. termination of citizenship of the Republic of Belarus;

2.4. commission of any act incompatible with the office of the Commissioner as provided for by article 6;

2.5. inability to perform official duties due to health reasons for more than four consecutive months as confirmed by a medical report.

3. In the event of discontinuation of activities of the Commissioner on the grounds provided for in item 1.1 of this article, the Commissioner shall continue to perform his/her duties until a new Commissioner is appointed.

4. In the event of discontinuation of activities of the Commissioner on the grounds provided for in items 1.2, 2.2, 2.3 of this article, the powers of the Commissioner shall be terminated from the moment of occurrence of the relevant event.

5. In the event of discontinuation of activities of the Commissioner on the grounds provided for in items 2.1, 2.4, 2.5 of this article, the decision on termination of powers shall be adopted by the Soim upon recommendation of the special commission. Special commission is obliged to carry out an inspection and submit its findings and

recommendations to the Soim within 30 days of the date of receipt of application or information on the occurrence of an event that constitutes a ground for termination of powers. The decision to terminate the powers of the Commissioner shall be adopted by a majority vote of the Soim deputies who took part in voting.

6. In the event of disagreement with the decision of the Soim, the Commissioner shall have the right to appeal against the decision in court.

7. In the event of discontinuation of activities of the Commissioner for Human Rights, his/her duties shall be temporarily performed by one of his/her deputies in accordance with the position description. In the absence of deputy commissioners, an acting Commissioner shall be appointed from among the Office staff by the decision of the Soim. The acting Commissioner shall continue to perform his/her duties until a new Commissioner is appointed, but in any event not more than six months.

CHAPTER 3. LEGAL GUARANTEES FOR ACTIVITIES OF THE COMMISSIONER

Article 8. Independence of the Commissioner

1. The Commissioner exercises his/her powers independently of any state bodies, local self-governing authorities, their officials, political parties and other organizations, as well as their representatives.

2. No one has the right to interfere with the Commissioner's activities, influence his/her decisions, prevent him/her from exercising his/her powers or give him/her binding instructions.

3. The Commissioner has independence to set priorities, determine the areas of focus and forms of interaction with state bodies and other entities. The Commissioner shall adopt all of his/her acts, conclusions and recommendations without securing approval of external parties.

Article 9. Immunity of the Commissioner

1. The Commissioner for Human Rights shall enjoy immunity during the entire period of his/her tenure and shall retain immunity from prosecution for acts committed in the discharge of his/her duties after expiration of his/her term of office.

2. The Commissioner, his deputies and employees of the Office of the Commissioner may not be prosecuted or held liable for opinions expressed and actions performed in the line of duty in compliance with this Law.

3. Criminal proceedings against the Commissioner may be instituted exclusively by the Prosecutor General of the Republic of Belarus with the prior consent of the Soim.

4. The Commissioner may not be detained, arrested, searched, subjected to personal inspection or administrative punishment through legal proceedings without the consent of the Soim.

5. Commissioner's immunity extends to his home and office premises, means of transport, means of communication, correspondence, documents and personal property.

6. The Commissioner has the right to refuse to testify in civil, administrative or criminal cases about circumstances that have become known to him/her in the line of duty.

7. The right to refuse to testify in accordance with item 6 of this article also applies to deputy commissioners and other employees of the Office of the Commissioner.

8. Violation of the immunity of the Commissioner, his/her deputies and other employees of the Office shall entail liability in accordance with the legislation of the Republic of Belarus.

Article 10. Obligation to cooperate with the Commissioner

1. State bodies, local self-governing authorities, legal entities and their officials are obliged to assist the Commissioner in the discharge of his/her duties.

2. State bodies, local self-governing authorities, legal entities and their officials are obliged to consider the Commissioner's submissions, requirements and recommendations in full and in a timely manner, as well as inform the Commissioner of the measures taken within the timeframe established by the legislation.

Article 11. Liability for interfering with the Commissioner's activities

1. Any actions or omissions that create obstacles to the exercise of powers of the Commissioner shall be considered an interference with the Commissioner's activities, including but not limited to the following:

1.1. refusal to provide or untimely provision of information, documents and materials requested by the Commissioner;

1.2. evasion from providing explanations or failure to provide necessary explanations in the course of inspections and during the pendency of complaints;

1.3. restriction of the Commissioner's access to state bodies and agencies, military units, pre-trial detention facilities, penal institutions and other organizations;

1.4. untimely provision of answers or failure to respond to the Commissioner's submissions, recommendations and requirements;

1.5. coercion of complainants, employees of the Office of the Commissioner or the persons providing information to the Commissioner;

1.6. interference with supervision of the observance of human rights and freedoms carried out by the Commissioner;

1.7. any other actions or inaction hindering the lawful activities of the Commissioner.

2. The Commissioner has the right to publish information about facts of interference with his/her activities and measures taken in the media and on the official Internet resources.

3. Interference with the Commissioner's activities shall entail legal liability in accordance with the legislation of the Republic of Belarus.

4. It is prohibited to harass, punish, intimidate, discriminate or otherwise adversely affect:

4.1. persons who filed complaints with the Commissioner;

4.2. employees of the Office of the Commissioner;

4.3. witnesses, experts and other persons who have provided information to the Commissioner or assist him/her in the exercise of his/her powers.

5. Investigation of cases of interference with the Commissioner's activities, including alleged harassment of complainants, witnesses and employees of the Office, shall be carried out by the prosecutor's office in accordance with the procedure established by the legislation of the Republic of Belarus.

6. Measures of state protection of persons referred to in this article shall be implemented in accordance with the procedure established by the legislation of the Republic of Belarus on the protection of witnesses and other parties to the criminal process.

Article 12. Remuneration and social guarantees of the Commissioner

1. The amount of remuneration of the Commissioner for Human Rights shall be established by the Soim at the level of the salary of the chairman of the Supreme Court of the Republic of Belarus.

2. The amount of remuneration of the Commissioner may not be reduced during the entire period of his/her tenure.

3. In the event of dismissal from office on the grounds not related to disciplinary violations, the Commissioner shall be paid severance allowance in the amount equivalent to three times his/her average monthly earnings. Within three months of dismissal from office, the Commissioner shall be provided with a job (post) equivalent to the one he/she held prior to being appointed as the Commissioner.

Article 13. Security of the Commissioner

Law enforcement agencies and other competent bodies are obliged to take all measures necessary to ensure the security of the Commissioner upon his/her request or in the case of threats to Commissioner's life, health or property.

CHAPTER 4. RIGHTS AND OBLIGATIONS OF THE COMMISSIONER

Article 14. Scope of competence of the Commissioner

The Commissioner for Human Rights shall:

in accordance with this Law, consider complaints alleging violation of human rights and freedoms;

verify facts of violation of human rights and freedoms;

facilitate the peaceful settlement of human rights disputes by agreement between the parties through counseling and mediation;

contribute to the improvement of legislation and law enforcement practice in the field of protection of human rights and freedoms;

supervise the observance of human rights and freedoms, including the conditions of detention of persons in places of deprivation of liberty;

prepare reports on the human rights situation in Belarus;

participate in the preparation of reports relating to the promotion and protection of human rights, which must be submitted to international organizations in fulfillment of state obligations;

cooperate with national, foreign and international organizations which are competent in matters of promotion and protection of human rights.

Article 15. Gratuitousness of the Commissioner's services

The Commissioner shall provide his/her services to interested persons on a gratuitous basis.

Article 16. The Commissioner's right to information

1. The Commissioner has the right to request and obtain information, documents and materials from state bodies, local self-governing authorities, officials, organizations and citizens of the Republic of Belarus as deemed necessary for the exercise of his/her powers.

2. The Commissioner shall have access to state secrets and other secrets protected by law in accordance with the procedure established by the legislation of the Republic of Belarus.

3. The requested information, documents and materials shall be provided to the Commissioner within the timeframe established by the legislation of the Republic of Belarus, but in any case within 30 days of the date of receipt of the request, unless otherwise specified in the request.

4. The Commissioner has the right to request and receive explanations from officials in the course of inspection and during the pendency of complaint.

5. In the event of refusal to provide information, the Commissioner has the right to apply to the court to obtain access to the necessary data.

6. Information received by the Commissioner shall be used exclusively for the purpose of exercising his/her powers and shall be kept in conditions ensuring its confidentiality and protection from unauthorized access.

Article 17. The Commissioner's right to visit organizations

1. The Commissioner has the right to visit, without hindrance, state bodies, local self-governing authorities, military units, places of deprivation of liberty, including prisons, pretrial detention facilities, correctional institutions, temporary detention centers and other places of forced imprisonment, as well as any other organizations, regardless of their organizational and legal form.

2. Visits may be carried out with or without prior notice, depending on the need and circumstances.

3. The heads of the organizations referred to in item 1 of this article are obliged to assist the Commissioner in arranging his/her visits and provide access to all premises, documents and persons necessary for inspection purposes.

4. During the visit, the Commissioner has the right to talk to any persons in the visited organization under conditions which ensure confidentiality and free expression of opinions.

5. The Commissioner has the right to involve deputy commissioners, Office staff and other specialists with requisite knowledge and competence in his/her visits.

6. The results of Commissioner's visits shall be formalized in an act, a copy of which shall be sent to the relevant organization for the purpose of taking measures to eliminate the identified violations, if any.

Article 18. The Commissioner's right to be received in audience by officials

1. The Commissioner has a right to unimpeded and priority reception by the President of the Republic of Belarus, the Prime Minister, the Chairman of the Council of Ministers, officials of state bodies, local self-governing authorities, state and non-state organizations, which are obliged to allow sufficient time for discussing a range of issues related to human rights and freedoms.

Article 19. The Commissioner's right to attend the meetings of collegial bodies

1. The Commissioner has the right to attend the meetings of any collegial state bodies, local self-governing authorities and other entities, which consider the issues falling within the scope of his/her authority.

2. The Commissioner has the right to speak at the meetings of collegial bodies in order to express his/her opinion and present his/her recommendations.

3. State bodies and institutions, the meetings of which are attended by the Commissioner, shall be obliged to consider the Commissioner's official standpoint and provide a written justification for the adopted decision, if it runs counter to the standpoint expressed by the Commissioner.

Article 20. The Commissioner's right to appeal to the Constitutional Court

1. The Commissioner has the right to address the Constitutional Court with a proposal to check regulatory legal acts for conformity with the Constitution, if he/she believes that these acts violate human rights and freedoms.

2. The Commissioner has the right to attend the sessions of the Constitutional Court when considering cases and issues related to human and civil rights and freedoms, and submit official opinions and recommendations.

Article 21. The Commissioner's right of recourse to the court

1. The Commissioner has the right to appeal to the court so as to defend human rights and freedoms violated by the decision or action (inaction) of state bodies, local self-governing authorities and other entities, as well as their officials.

2. The Commissioner has the right to appeal to the court against the refusal to implement his/her recommendations, submissions or requirements.

3. In exceptional circumstances, if a regulatory legal act creates a direct threat of massive or gross violation of human rights, the Commissioner may petition the court or other competent body for temporary suspension of such act until the problem is decided on its merits.

4. The Commissioner has the right to participate in judicial proceedings at his/her own discretion either in person or by proxy.

5. The Commissioner has the right to submit written opinions on cases, which are essential to the protection of human rights and freedoms, for consideration by the court. The court shall consider the opinion of the Commissioner as an independent and authoritative opinion reflecting his/her position on human rights.

6. Participation of the Commissioner in court hearings and presentation of opinions shall not be considered an obstruction to justice. The Commissioner is not entitled to evaluate court decisions on the merits, but he/she may analyze their compliance with procedural guarantees and generally recognized standards of fair trial.

Article 22. The Commissioner's right to monitor court cases

1. The Commissioner has the right to familiarize himself/herself with the files of criminal, civil and administrative cases, the court decisions on which have entered into legal force, provided that these cases relate to issues of observance of human and civil rights and freedoms.

2. The Commissioner has the right to study the files of discontinued proceedings and materials in the cases which were rejected, provided that these cases relate to issues of observance of human and civil rights and freedoms.

3. The Commissioner has the right to attend the sessions of all judicial instances, including closed sessions, with the consent of the parties to the cases considered in a closed session.

Article 23. Acts of response of the Commissioner

1. The Commissioner has the right to issue acts of response in cases of violation of human rights and freedoms.

2. The Commissioner's acts of response include:

2.1. submissions on the elimination of identified violations of human rights and freedoms and the consequences thereof; on the improvement of detention conditions in places of deprivation of liberty;

2.2. recommendations on the improvement of legislation and law enforcement practice;

2.3. demands for conducting official investigations and bringing the perpetrators to justice;

2.4. Submissions on bringing to administrative or criminal responsibility persons guilty of violating human rights and freedoms;

2.5. other acts of response submitted at the discretion of the Commissioner.

3. The Commissioner's acts of response are of advisory nature, and they are subject to mandatory consideration by state bodies, local self-governing authorities, organizations and officials to whom they are addressed. The addressees shall notify the Commissioner in writing of the results of consideration, measures taken or justified refusal to implement them within the time limit prescribed by the Commissioner, but in any case within 30 calendar days.

4. In the event of defiance of recommendations or failure to take measures, the Commissioner shall be entitled to initiate parliamentary hearings.

Article 24. Initiation of parliamentary hearings

1. The Commissioner has the right to initiate parliamentary hearings in the event of mass or gross violations of human rights and freedoms, as well as in case of systematic defiance of the Commissioner's recommendations.

2. Proposals to hold parliamentary hearings along with justification of why needed as well as relevant facts and evidence shall be submitted for consideration by the Soim.

3. The Soim is obliged to consider the Commissioner's proposal to hold parliamentary hearings within the timeframe established by the Statute of the Soim.

4. In the event of refusal to hold parliamentary hearings, the Soim shall provide a written justification of its decision and propose alternative measures to provide for consideration of submitted facts and evidence.

5. The Commissioner has the right to participate in parliamentary hearings and meetings of parliamentary committees, present his/her conclusions and recommendations, as well as involve experts and witnesses in these hearings.

Article 25. Publicity of documentation

1. All official documents issued by the Commissioner shall be publicly available. They are subject to publication on the official Internet resource of the Commissioner.

2. The Commissioner shall have discretion to make decisions on the selection of documents for publication, the procedure and timing for placing them on the Internet, with the exception of the annual report which is subject to publication in full. Access to publications may be restricted if the document contains state secrets, personal data or other sensitive information protected by law, as well as for the purpose of protecting the rights of complainants and victims of violations or preventing the use of these documents for political purposes.

Article 26. Obligations of the Commissioner

The Commissioner is obliged to:

consider complaints of citizens and organizations within the timeframe established by this Law;

verify facts of violation of human rights and freedoms;

prepare and submit recommendations to state bodies, local self-governing authorities, officials and organizations for the purpose of elimination of identified violations;

inform complainants of the results of consideration of their complaints and the measures taken;

prepare annual and special reports on the human rights situation in the Republic of Belarus and submit them for consideration by the Soim;

maintain confidentiality of the information that has become known to him/her in the line of duty, except in cases where disclosure of information is necessary for the protection of human rights and freedoms;

ensure transparency of his/her activities and inform the public about the work done on a regular basis through publications in the media and on the official Internet resource of the Commissioner.

Article 27. Annual and special reports of the Commissioner

1. The Commissioner shall prepare annual reports on the human rights situation in the Republic of Belarus upon the results of examination of complaints, conducted inspections and monitoring of the observance of human rights and freedoms.

2. The content of annual reports shall be determined by the Commissioner on an independent basis. The report may include, inter alia:

2.1. analysis of human rights and freedoms situation in the Republic of Belarus;

2.2. information on detected violations of human rights and freedoms and measures taken to eliminate them;

2.3. recommendations on the improvement of legislation and law enforcement practice in the field of protection of human rights and freedoms;

2.4. information on legal education activities and other initiatives aimed at improving the legal literacy of citizens;

2.5. Assessment of efficiency of the activities of state bodies, local self-governing authorities and officials in the field of human rights protection;

2.6. opinions and recommendations of international organizations for ensuring observance of human rights and freedoms in the Republic of Belarus.

3. The annual report shall be submitted for consideration by the Soim on or before March 31 of the year following the reporting year. The Soim is obliged to hold a public discussion of the report, hear the Commissioner and decide on the measures recommended by the Commissioner. The Soim does not approve the report itself, but considers proposals aimed at improving the human rights policy.

4. The Commissioner has the right to prepare special reports on selected issues of protection of human rights and freedoms, if deemed necessary.

Article 28. Confidentiality of information

1. The Commissioner, deputy commissioners, employees of the Office and other persons involved in the performance of work with documents and materials of the Commissioner are obliged to maintain confidentiality of information obtained in the course of their activities.

2. The Commissioner shall ensure protection of confidential information, including through the use of technical and organizational measures consistent with the laws of the Republic of Belarus. All persons with access to sensitive information shall sign a non-disclosure agreement that creates an obligation to keep this information confidential. Violation of non-disclosure agreement shall entail liability in accordance with the legislation of the Republic of Belarus.

3. The Commissioner shall process personal data in accordance with the legislation of the Republic of Belarus on personal data protection.

Article 29. Language of clerical correspondence

1. Clerical work of the Commissioner for Human Rights shall be conducted in the official language of the Republic of Belarus.

2. In case of necessity to provide information in a foreign language, the Commissioner shall ensure translation and certification of the relevant documents.

Article 30. Exercise of powers under conditions of martial law or a state of emergency

1. During the period of emergency or martial law, the Commissioner continues to exercise his/her powers to the full extent provided for by this Law and the Constitution of the Republic of Belarus.

2. It is not allowed to limit the powers of the Commissioner under conditions of martial law or a state of emergency.

3. During the period of emergency or martial law, financing of the Commissioner's activities shall be carried out on a priority basis and in the amount necessary for the exercise of his/her powers.

CHAPTER 5. NATIONAL PREVENTIVE MECHANISM FOR THE PREVENTION OF TORTURE

Article 31. National preventive mechanism

1. The Council for the prevention of torture (hereinafter – the Council) shall serve as a national preventive mechanism under the auspices of the Office of the Commissioner in fulfillment of obligations arising from the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment.

2. The Council is an autonomous structural unit of the Office of the Commissioner operating within the scope of Commissioner's powers. The Council enjoys functional, organizational, operational and financial independence.

3. The Council is not an investigative body, but an extra-judicial mechanism which is based on a preventive approach aimed at protecting incarcerated persons from torture and other forms of ill-treatment.

4. The Council shall operate on the principles of independence, impartiality, objectivity and confidentiality.

5. Regulations on the organization and functioning of the Council shall be approved by the Commissioner. These regulations are not subject to agreement with other state bodies.

Article 32. Composition of the Council for the prevention of torture

1. The Council shall be composed of seven members, including the chairperson – the Commissioner for Human Rights who is a member of the Council ex officio.

2. The remaining six members of the Council shall be selected subsequent to the results of an open, transparent and non-discriminatory competition organized by the Office of the Commissioner. Civil society actors, representatives of scientific community and professional associations shall participate in the competition process.

3. The Council shall be formed on the basis of gender-balanced representation, professional diversity and the absence of conflicts of interests from among persons with expertise in the field of human rights, medicine, psychology, social work, penitentiary and legal spheres.

4. The following persons may not be members of the Council:

4.1. persons who hold a public or elected office;

4.2. members of political parties;

4.3. law enforcement officers;

4.4. persons who find themselves in a conflict-of-interest situation.

5. Members of the Council shall be provided with official IDs. They enjoy immunities as specified by article 9 of this Law for the employees of the Office of the Commissioner.

Article 33. The powers of the Council and support of its activities

1. As part of performance of the functions of the national preventive mechanism, the Council shall:

1.1. make regular and unannounced visits to places of detention specified in article 17 of this Law without prior notice of time and purpose of the visit;

1.2. assess the detention conditions and treatment of persons in isolation, and the situation with respect to observance of their rights;

1.3. develop recommendations and proposals for the prevention of torture and the improvement of conditions of detention;

1.4. submit proposals for the improvement of legislation and law enforcement practice;

1.5. participate in the preparation of special reports, including an annual report on the state of prevention of torture, which is subject to mandatory publication and submission for consideration by the Soim;

1.6. interact with the UN Subcommittee on Prevention of Torture, other international entities and human rights mechanisms;

1.7. involve civil society actors, representatives of scientific and expert community, including foreign experts, in monitoring visits and other events;

1.8. perform other actions provided for by the mandate of the national preventive mechanism in accordance with the Optional Protocol to the Convention against Torture.

2. Members of the Council have the right to:

2.1. unimpeded access to all premises and institutions specified in article 17 of this Law;

2.2. hold confidential conversation with isolated persons without the presence of strangers;

2.3. request and receive documents, explanations and information necessary to perform their functions.

3. The funds necessary to exercise the powers of the Council shall be specified in a separate item of budget of the Office of the Commissioner.

CHAPTER 6. THE PROCEDURE FOR CONSIDERATION OF COMPLAINTS

Article 34. The right to file a complaint to the Commissioner

1. Any individual, whose rights and freedoms have been violated, as well as legal entity acting in the interests of an individual shall exercise the right to file a complaint to the Commissioner.

2. A complaint may be submitted by a representative of the person, whose rights have been violated, on the basis of a power of attorney or other document confirming the authority of the representative.

3. Non-governmental associations, human rights organizations and other entities having a legitimate interest in protecting the rights and freedoms of others shall be vested with the right to file complaints on behalf of the persons whose rights and freedoms have been violated.

4. A complaint must be submitted within a year of the date on which the complainant became aware or should reasonably have become aware of the violation of rights and freedoms, unless the Commissioner finds valid reasons for missing this time limit.

5. In the event of filing complaints about systematic or massive violations of human rights and freedoms, the Commissioner may accept them for consideration regardless of the expiration of statutory deadlines, if he deems it necessary to protect public interests.

6. In special circumstances relating to gross violation of human rights, the Commissioner has the right to accept a complaint for consideration after the expiry of statutory time limits, if he/she deems it necessary for the restoration of justice.

7. The Commissioner shall consider complaints about violations of human rights and freedoms, regardless of whether they are filed directly by the victims or their representatives.

Article 35. Complaints that are not subject to consideration by the Commissioner

1. The Commissioner shall not consider:

1.1. anonymous complaints, except in cases where immediate intervention is required in the opinion of the Commissioner;

1.2. complaints containing obscene phrases, threats and insults, except for cases where the content of the complaint clearly indicates a violation of human rights and freedoms which requires immediate intervention;

1.3. repeated complaints, on which the Commissioner has already made a final decision, except for cases where the complainant provides new facts or pieces of evidence that are relevant to the case;

1.4. complaints concerning the matters that fall beyond the competence of the Commissioner.

2. The Commissioner shall not consider complaints concerning:

2.1. contested cases that are being examined by a court, except where matters relating to observance of human rights and freedoms are being considered in the course of legal proceedings;

2.2. court decisions on complaints, except where these complaints concern the matter of violation of the procedural rights of participants of legal proceedings or the execution of court judgments.

3. The Commissioner is obliged to notify the complainant in writing of the refusal to consider the complaint while indicating the reasons for the refusal and, if possible, providing an explanation of the procedure for contacting the competent authorities.

4. The Commissioner has the right to forward a complaint to the competent authority upon notice thereof to the complainant, provided that such complaint is not subject to consideration by the Commissioner.

Article 36. Submission of a complaint to the Commissioner

1. A complaint may be submitted:

1.1. in written form by way of sending it by post to the address of the Office of the Commissioner, or delivered in person by the complainant or his/her representative to the Office. A written complaint must be signed by the complainant or his/her representative;

1.2. in electronic form via the official Internet resource of the Commissioner or sent to the official e-mail of the Commissioner. An electronic complaint must contain an electronic signature of the complainant, if such a possibility is provided for by the legislation;

1.3. in oral form when the complainant personally contacts the Office of the Commissioner. In the event of filing an oral complaint, an Office employee shall draw up a protocol describing the nature of the complaint with the inclusion of personal data and signature of the complainant.

1.4. using other means of communication, including telephone, if such a possibility is provided for by the internal regulations of the Office of the Commissioner. In the event of filing a complaint by telephone, an Office employee shall draw up a protocol of the phone conversation.

2. The complaint must include:

2.1. surname, first name, patronymic of an individual and the name of legal entity of the complainant;

2.2. contact details of the complainant (phone, email, place of residence or location);

2.3. description of the nature of violated right or freedom;

2.4. statement of circumstances, under which the violation occurred, with an indication of the time and place of occurrence;

2.5. evidence confirming the fact of the violation (if any);

2.6. complainant's demands.

3. The complaint may be accompanied by documents and materials confirming the circumstances set out in it, as well as any other information that can contribute to a comprehensive and objective consideration of the complaint.

4. The complaint shall be drawn up in the official language of the Republic of Belarus. In case of necessity to file a complaint in a foreign language, the complainant is obliged to ensure that it is translated into the official language.

5. The complaint shall be registered on the day of receipt thereof by the Office of the Commissioner. The complainant shall be given a confirmation of receipt of the complaint with an indication of the date and registration number.

6. The Commissioner shall check the complaint for conformity with the requirements established by this Law and adopt one of the following decisions within 10 working days:

6.1. accept the complaint for consideration;

6.2. refuse to accept the complaint for consideration while indicating the reasons for the refusal.

7. The complainant shall be notified of the Commissioner's decision within 3 working days of the date of its adoption.

8. The complainant has the right to withdraw the submitted complaint at any time before the Commissioner adopts a decision on it. The request for withdrawal of the complaint shall be made in written or electronic form with an indication of registration number of the complaint.

Article 37. Filing of a complaint by a person held in detention facilities

1. Administrations of detention facilities are obliged to inform detained persons of their right to file a complaint to the Commissioner and the procedure for filing such complaints. Information on the procedure for filing a complaint should be posted in a visible location and be made accessible to all persons held in detention facilities.

2. Detained persons may file a complaint directly to the Commissioner in a face-to-face meeting during his visit to the place of detention or in written form through the agency of administration of detention facility.

3. Administration of detention facility is obliged to allow for filing a complaint in a sealed envelope that cannot be opened while refraining from prior acquaintance and censorship of its content.

4. Administration of detention facility is obliged to forward the complaint to the Commissioner within 24 hours of receipt thereof.

5. Complaints of detained persons shall be sent to the Commissioner free of charge.

6. In the event that a detained person files a complaint in a foreign language, the Office of the Commissioner shall provide for the translation of complaint into the official language of Belarus.

Article 38. Consideration of complaints by the Commissioner

1. Complaints shall be considered in the order in which they are received, except in cases where immediate intervention is required.

2. Based on the results of consideration of complaint, the Commissioner may arrive at one of the following decisions:

2.1. render complaint justified;

2.2. render complaint partially justified;

2.3. render complaint unjustified.

3. In the event that the complaint is rendered justified or partially justified, the Commissioner shall take measures to eliminate the identified violations, including but not limited to:

3.1. sending recommendations and submissions to the relevant state bodies, local self-governing authorities, officials or organizations for the purpose of taking measures to eliminate the violations;

3.2. ensuring control over the implementation of recommendations and submissions;

3.3. providing assistance to the complainant in restoring his/her rights in terms of the recognized violations.

4. In the event that the complaint is rendered unjustified, the Commissioner shall issue a grounded decision stating the reasons for refusal to satisfy the complaint.

5. The Commissioner shall notify the complainant and interested state bodies, officials or organizations of the adopted decision within 5 working days of the date of its formalization.

Article 39. Guarantees of protection of human rights in the course of consideration of complaints by the Commissioner

1. The Commissioner shall ensure confidentiality of information received in the course of consideration of complaints. He/she shall use it solely for the purpose of protecting human rights and freedoms.

2. State bodies, local self-governing authorities, officials, organizations or other persons are prohibited from subjecting complainants to harassment or discrimination in connection with the filing of a complaint. The Commissioner shall take measures to

protect complainants from any form of harassment, including by means of petitioning the competent bodies to bring the guilty persons to justice.

3. The Commissioner shall assist complainants in protecting their rights and freedoms, including by way of representing their interests in state bodies. Complainants have the right to receive information about the progress and results of consideration of their complaints.

4. The Commissioner shall consider complaints based on the principles of fairness and objectivity with due account for all facts and circumstances of the case while ensuring equal opportunities for all parties to present their evidence and standpoints. The decisions of the Commissioner should be substantiated and reasoned, based on the law and factual data.

5. Complainants have the right to appeal the actions, decisions or inaction of the Commissioner in court in accordance with the legislation of the Republic of Belarus.

6. Complainants and other interested persons have the right to participate in the consideration of the complaint, provide explanations, present evidence and arguments, and file petitions.

7. The Commissioner shall inform complainants or their representatives about the stages of the process of considering their complaints.

Article 40. Own initiative investigations

1. The Commissioner has the right to initiate an investigation on his/her own initiative if he sees sufficient grounds for doing this.

2. The results of the investigation shall be presented in the form of a report, which shall be submitted to relevant state bodies, local self-governing authorities, officials or organizations for the purpose of taking measures to eliminate the detected violations.

Article 41. Conduct of inspections

1. The Commissioner has the right to inspect state bodies, local self-governing authorities, organizations, institutions and enterprises, including prisons, pre-trial detention facilities, correctional institutions, temporary detention centers and other places of forced imprisonment (hereinafter – inspection sites) in order to verify compliance with human rights and freedoms.

2. Inspection sites are obliged to assist the Commissioner and provide access to the necessary information and premises.

Article 42. Contributing to peaceful settlement of disputes

1. In order to facilitate the protection of human rights and freedoms, the Commissioner may participate in the peaceful settlement of disputes between citizens and state bodies, local government bodies, their officials, state and other organizations, provided that such disputes concern the matter of violation of human rights and freedoms.

2. The Commissioner has the right to do the following at the request of the parties or on his own initiative:

2.1. initiate a conflict-resolution procedure in the form of consultation, conciliation or mediation;

2.2. hold confidential meetings and negotiations with the participation of the parties;

2.3. facilitate the development of a mutually acceptable solution;

2.4. prepare recommendations, memoranda or agreements with the consent of the parties.

3. The conciliation procedure is carried out on a voluntarily basis with the consent of both parties.

4. Participation in the conciliation procedure is without prejudice to the parties' right to use other means of legal defense, including judicial ones, should they fail to reach an agreement on the merits.

5. Information received by the Commissioner in the course of dispute resolution is not subject to disclosure without the consent of the parties, except in cases expressly provided for by law.

CHAPTER 7. PROTECTION AND PROMOTION OF HUMAN RIGHTS

Article 43. The Commissioner's activities on the improvement of human rights legislation

The Commissioner contributes to the improvement of human rights legislation by:

analyzing the current legislation and the practice of application of its provisions in the field of human rights and freedoms;

preparing proposals and recommendations for amendments and additions to the legislative acts of the Republic of Belarus aimed at improving the protection of human rights and freedoms;

participating in the development and examination of draft regulatory legal acts in so far as they relate to human rights and freedoms;

monitoring and analyzing international experience and practices in the field of protection of human rights with the aim of adapting and implementing them in national legislation.

Article 44. The Commissioner's activities in the field of legal education

1. The Commissioner promotes legal education of citizens in order to raise awareness of human rights and freedoms, as well as the mechanisms for protecting them.

2. The Commissioner develops and disseminates informational and educational materials, organizes and holds educational events, awareness campaigns.

3. The Commissioner may initiate research studies, surveys and other analytical activities to assess the level of legal literacy of citizens and the effectiveness of legal education events.

4. The Commissioner cooperates with educational institutions, provides methodological assistance in the development and implementation of training courses and programs on human rights.

5. The Commissioner promotes the development of legal culture in society, supporting initiatives aimed at strengthening respect for human rights and freedoms, legality and law order, interacts with human rights organizations.

Article 45. The Commissioner's activities on the development of international cooperation

1. The Commissioner promotes the development of international cooperation in the field of protection of human rights and freedoms, participates in international and regional human rights initiatives and projects, forums, conferences, workshops and other events dedicated to human rights issue.

2. In the field of international cooperation, the Commissioner has the right to:

2.1. conclude cooperation agreements with international and regional organizations on issues of protecting human rights and freedoms;

2.2. initiate, participate and implement international projects and programs aimed at protecting and promoting human rights and freedoms in the Republic of Belarus;

2.3. submit his/her conclusions, recommendations and reports to international organizations which are competent in the field of protection human rights, as well as participate in the consideration of these issues at the international level;

3. The Commissioner informs international organizations and partners about the human rights situation in the Republic of Belarus, presents objective facts, data and measures taken to improve the situation.

4. The Commissioner has the right to represent the interests of complainants in international tribunals and other institutions which consider complaints about violations of human rights and freedoms. He/she is entitled to submit requests and receive information on the status of consideration of cases involving the rights and freedoms of citizens of the Republic of Belarus in international tribunals and other bodies.

5. The Commissioner organizes exchange of visits and internships with the participation of ombudsmen and human rights organizations from other countries for the purpose of improvement of qualifications and sharing of experience.

CHAPTER 8. SUPPORT OF ACTIVITIES OF THE COMMISSIONER AND HIS OFFICE

Article 46. Office of the Commissioner for Human Rights

1. The Office of the Commissioner for Human Rights is established as a national institution for the promotion and protection of human rights in accordance with the Paris Principles adopted by UN General Assembly Resolution 48/134 of December 20, 1993.

2. The Office is a state institution with the right of a legal entity. The Office has a current account and other bank accounts, as well as official seal and letterhead with its own name and national emblem of the Republic of Belarus printed on it.

3. The Office enjoys organizational, functional and financial independence from any other state bodies, legal entities and individuals.

4. The Office of the Commissioner provides legal, organizational, scientific, analytical and informational support for the activities of the Commissioner.

5. Regulations on the organization and functioning of the Office shall be approved by the Soim. Internal order, staffing schedule, organizational chart of the Office, as well as internal regulations on the activities of structural subdivisions shall be approved by the Commissioner.

6. The organizational structure, staffing levels and operating procedures of the Office shall be approved by the Commissioner within the budget of the Office.

7. The Commissioner shall provide overall direction of the Office. The organizational and administrative activities of the Office shall be directed by Deputy Commissioner. The post of director may be created within the organizational structure of the Office by the decision of the Commissioner. The director shall carry out day-to-day management of personnel work, administrative and financial activities of the Office. The powers of the director shall be determined by the Commissioner.

Article 47. Office staff

1. The Office staff includes the Commissioner, his/her deputy (deputies), representatives, other employees and specialists, as well as technical personnel.

2. The Commissioner may have one or more deputies. Deputy Commissioner (Deputy Commissioners) shall be appointed and dismissed from office by the Soim upon the recommendation of the Commissioner. The Commissioner shall independently determine the areas and directions of activity of Deputy Commissioner (deputy commissioners).

3. The Commissioner has the right to appoint his/her representatives within the allocated budget funds. Representatives shall perform certain tasks on behalf and in the interests of the Commissioner. Representatives may be appointed on a permanent or temporary basis.

4. Representatives may carry out activities:

4.1. on the basis of a territorial principle (territorial representatives);

4.2. in the areas of protection of individual human rights (thematic representatives).

5. The scope of powers of representatives, the procedure for their interaction with the Office and the conditions of performance of activities shall be determined by the Commissioner.

6. The Commissioner appoints and dismisses employees of the Office.

7. The amount of remuneration of Deputy Commissioners shall be established at the level of salaries of judges of the Supreme Court of the Republic of Belarus. The salaries of the employees of the Office are established with due for the importance of the tasks performed, qualifications, level of responsibility and scope of powers. Their salaries cannot be lower than those established for the corresponding category of civil servants. The Office has the right to apply certain conditions of employment that differ from standard rules of civil service, if deemed necessary for attracting highly qualified specialists.

8. Deputy Commissioners, representatives, employees of the Office are vested with the powers provided for by this Law. They perform functional duties in accordance with job descriptions approved by the Commissioner.

9. The Commissioner may delegate his/her rights and powers to Deputy Commissioners, representatives and employees of the Office, except for the right to appeal to the Constitutional Court.

10. The Commissioner and his/her deputy (deputies) carry identity certificates confirming their status and powers. The procedure for drawing up, issuing and replacing the identity certificates of the Commissioner and his/her deputies shall be established by the Soim. Members of the Office staff carry service certificates. The template of service certificate as well as the procedure for issuing, using and revoking them shall be approved by the Commissioner.

Article 48. Advisory and expert councils

1. Advisory and expert councils may be established under the Office of the Commissioner to provide professional and scientific support, assistance in implementing the mandate of the Commissioner, including participation in monitoring and educational activities, analytical work, preparation of reports, development of recommendations, and discussion of priority areas of the Office's activities.

2. Advisory and expert councils are formed on the principles of independence, professional diversity, gender balance and the absence of conflicts of interest. They may include representatives of civil society, scientific and expert community, trade unions, human rights and international organizations, depending on the goals and objectives of a specific council. Periodic rotation of council members is possible, if deemed necessary.

3. Regulations on the activities, composition and procedures for forming the councils shall be approved by the Commissioner. Office of the Commissioner provides support for the activities of the council.

Article 49. Financing of activities of the Commissioner and his Office

1. The activities of the Commissioner and his/her Office are financed from the state budget on a submission from the Commissioner. These allocations are specified in a separate item of the state budget of the Republic of Belarus.

2. The Office should receive adequate funding for performance of its functions in accordance with the Paris Principles, including but not limited to maintaining a regional presence, conducting independent examinations and participating in international human rights mechanisms.

3. Arbitrary cutbacks to funding allocated from the state budget of the Republic of Belarus are prohibited. Any reduction of allocations in this respect is subject to official justification and prior approval by the Soim.

4. The Government has no right to address the Soim with a proposal to adjust the budget of the Commissioner without prior consent of the Commissioner.

5. The Office may attract additional funds from other sources not prohibited by the legislation of the Republic of Belarus, including foreign non-repayable aid and international technical assistance, private donations, provided that such sources do not affect the Commissioner's independence.

6. The Commissioner independently prepares and approves an estimate of expenses for supporting his/her activities and the activities of the Office within the limits of allocated and attracted funds.

7. The Commissioner prepares annual reports on financial activities, including the information on budget expenditures. These reports are subject to publication.

CHAPTER 9. FINAL PROVISIONS

Article 50. Entry into force of this Law

This Law shall enter into force from the day of its official publication.

Article 51. Harmonization of regulatory legal acts with this Law

1. Within six months of the date of entry into force of this Law, the Government of the Republic of Belarus shall:

1.1. ensure that regulatory legal acts of the Republic of Belarus are brought into compliance with this Law;

1.2. take other measures necessary to implement the provisions of this Law.

2. The ministries and other state bodies of the Republic of Belarus shall bring their regulatory legal acts into compliance with this Law within six months of the date of entry into force of this Law.

Article 52. Transitional provisions

1. The first Commissioner for Human Rights shall be appointed in the manner prescribed by this Law not later than three months from the date of its entry into force.

2. The Commissioner shall develop and approve the organizational chart and staffing schedule of the Office of the Commissioner within three months of the date of his/her appointment.

3. The provisions of regulatory legal acts of the Republic of Belarus shall be applied insofar as they do not conflict with this Law until they are brought into compliance with this Law.